

Defendant is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Demurrer to the First Amended Complaint ("FAC")

Defendant demurs to the FAC contending it fails to state a cause of action pursuant to Code of Civil Procedure section 430.10(e). Plaintiff opposes the demurrer.

A party may demur when a pleading does not state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 430.10, subd. (e).) A demurrer tests the legal sufficiency of the pleadings, not the truth of the allegations or the accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleadings are deemed true no matter how improbable they may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) However, the court does not assume the truth of contentions, deductions, or conclusions of facts or law. (*Evans v. City of Berkeley* (2006) 38 Cal.4th 1, 6.) The court may only refer to matters outside the pleading that are subject to judicial notice. (*Rea v. Blue Shield of California* (2014) 226 Cal.App.4th 1209, 1223.) Grounds for demurrer to an amended complaint shall not lie if those grounds could have been raised by prior demurrer. (Code Civ. Proc., § 430.41, subd. (b).)

The court has carefully reviewed the FAC and determines plaintiff adequately addressed the grounds on which the demurrer to the initial complaint was sustained. The court declines to consider defendant's new arguments that could have been raised by the prior demurrer. In summary, the court finds the FAC sufficiently alleges a cause of action under California's Invasion of Privacy Act.

The demurrer is overruled and defendant shall file and serve a responsive pleading by May 22, 2026.

Motion to Quash

The motion to quash is dropped from calendar as no moving papers were filed with the court.

16. S-CV-0056291 Fisher, Jeffrey P v. Hansen, Brenda Lee

The petition to confirm appraiser's award is dropped as moot in light of the order on stipulation filed on May 5, 2026.

The court vacates the hearing on the petition to confirm appraiser's award scheduled for September 8, 2026 in light of the order on stipulation filed on May 5, 2026.

The order to show cause hearing regarding status of stay currently scheduled for **July 27, 2026 at 3:30 p.m. in Department 40** shall be heard on the same date, time, and department for an order to show cause hearing regarding entry of judgment.

17. S-CV-0056373 City of Lincoln v. Shelgren, Christian A

Petition for order to abate substandard building; appointment of receiver; requiring reimbursement

Petitioner seeks a court order to abate substandard building; order to appointment of receiver; and an order requiring reimbursement.

Petitioner states in the petition that the following parties have a recorded interest in the property and are entitled to notice of hearing: (1) the Placer County Tax Collector; (2) United States of America acting through the Farmers Home Administration, United States Department of Agriculture; and (3) LVNV Funding, LLC. All three are entitled to notice under California Health and Safety Code § 17980.7 (c). (Petition at 6.)

The court previously continued the matter on March 17, 2026, for insufficient notice of hearing on interested parties and lack of proper proof of service of summons for the respondent. After the continuance, petitioner sent notice of hearing to all interested parties but has not filed an amended proper proof of service for the respondent property owner.

A petition to abate substandard building; order to appointment of receiver; and an order requiring reimbursement, when filed in a new action, must be served in the same manner as a summons. (Health & Saf. Code, § 17988; Code Civ. Proc., § 1290.4 (b).) While there is proof of service of summons in the court's file (filed March 3, 2026), it has no name listed under the party served, number 3a. Therefore, there is insufficient proof of service of summons on record for the respondent pursuant to Code of Civil Procedure section 415.10. Given this procedural deficiency, the petition is denied.

The motion on the petition to abate substandard building; order to appointment of receiver; and an order requiring reimbursement is denied, without prejudice, for petitioner to file a proper proof of service of summons for the respondent and serve and file a notice of hearing on the respondent and all interested parties with a new reserved hearing date.

18. S-CV-0056629 Olin, John v. Olin, Allan

The motion to consolidate is dropped from calendar as no moving papers were filed with the court.

19. S-CV-0056807 In Re the Petition of Brooklynn Sanford

Petition for Approval of Compromise of Claim of Proceeds of Judgment for Minor